

24STCV05865 24STCV05865

County: los-angeles

Division: Civil Law and Motion

Department: 11

Hearing date: 2026-07-08

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C11%2C07%2F08%2F2026

Source SHA-256: b1baa2c0e1e8e3c46800ce24f473bf5fa8e5d877b68a56040ff3d11516e34271

Case Number: 24STCV05865 Hearing Date: July 8, 2026 Dept: 11

Final

Approval of Class Action Settlement

Dept.

11

Liebregt

v. World Courier Inc., et al.

Case

No.: 24STCV05865

Hearing: July 8, 2026

TENTATIVE

RULING

Grant Final Approval and award/approve the

following: (1) \$316,666.367 for

attorney fees to Class Counsel; (2) \$23,275.94 for attorney costs to

Class Counsel; (3) \$7,500 for an

enhancement awards to the class representative; (4) \$7,050 for claims administration costs; and (5) \$32,500 (65% of \$50,000 PAGA penalty)

to the LWDA.

The Court orders class counsel to file

a Final Approval Order consistent with this ruling, including all approved

deductions, the full release language, and a statement that no Class Member

opted out no later than _____, 2026.

The Court orders class counsel to file a final report summarizing all distributions made pursuant to the approved settlement, supported by declaration. The Court will set a non-appearance date for submission of a final report for _____, 2026.

BACKGROUND

This is a wage and hour class action. Defendants operate a drug wholesale and distribution company that operates in the State of California, including the county of Los Angeles, where Plaintiff worked. Plaintiff worked for Defendants in California from approximately September 2013 to November 2022 as a non-exempt employee, paid on an hourly basis.

On March 8, 2024, Plaintiff commenced this Action by filing a Complaint alleging eight (8) causes of action against Defendants World Courier Inc., Cencora, Inc., AmerisourceBergen Drug Corporation, AmerisourceBergen Services Corporation, and AmerisourceBergen Specialty Group, LLC for: (1) Unfair Competition in Violation of Cal. Bus. & Prof. Code § 17200 et seq.; (2) Failure to Pay Minimum Wages in Violation of Cal. Lab. Code §§ 1194, 1197 & 1197.1; (3) Failure to Pay Overtime Wages in Violation of Cal. Lab. Code §§ 510, et seq.; (4) Failure to Provide Required Meal Periods in Violation of Cal. Lab. Code §§ 226.7 & 512 and the Applicable IWC Wage Order; (5) Failure to Provide Required Rest Periods in Violation of Cal. Lab. Code §§ 226.7 & 512 and the Applicable IWC Wage Order; (6) Failure to Reimburse Employees for Required Expenses in Violation of Cal. Lab. Code § 2802; (7) Failure to Provide Accurate Itemized Statements in Violation of Cal. Lab. Code § 226; and (8) Failure to Provide Wages When Due in Violation of Cal. Lab. Code §§ 201, 202, and 203.

On April 15, 2024, Defendants removed the Action to the United States District Court Central District of California, Case Number 2:24-cv-03051-JAK-SK.

On October 10, 2024, Plaintiff filed a Notice of Violations with the LWDA and served the same on Defendants. On December 18, 2024, Plaintiff filed an Amended Notice of Violations, adding Defendant World Customs Brokerage, Inc., and served the same on Defendants.

On January 21, 2025, this Action was remanded from the United States District Court Central District of California to the Superior Court of California, County of Los Angeles.

On February 7, 2025, Defendants Cencora, Inc., AmerisourceBergen Drug Corporation, AmerisourceBergen Services Corporation, and Amerisource Specialty Group, LLC were dismissed from the Action without prejudice.

On February 27, 2025, Plaintiff filed the operative First Amended Complaint, adding Defendant World Customs Brokerage, Inc. as a defendant and adding a ninth cause of action for alleged Violations of the California Labor Code's Private Attorneys General Act [Labor Code §§ 2698, et seq.].

Counsel represents that prior to mediation, Plaintiff obtained, through informal discovery, Defendants' pertinent wage and hour policies, including but not limited to, meal and rest period policies, overtime policies and timekeeping policies, Defendant's Employee Handbook, and 100% of the time and payroll records for Class, which was reviewed by the statisticians and economists at Berger Consulting Group ("BCG"),

On November 18, 2024, the Parties participated in an all-day mediation presided over by Monique Ngo-Bonnici, Esq. which led to this Agreement to settle the Action.

A copy of the fully executed Settlement Agreement was filed with the Court on May 28, 2025, attached to the Declaration of Jean-Claude Lapuyade ("Lapuyade Decl.") as Exhibit 1 ISO Preliminary Approval as Exhibit 1.

On July 23, 2024, the court issued a checklist of items for counsel to address and continued preliminary approval. In response, on February 14, 2024, counsel filed a fully executed Settlement Agreement attached to the Supplemental Declaration of Jean-Claude Lapuyade (Lapuyade Supp. Decl.) ISO Preliminary Approval as Exhibit 1.

Preliminary Approval was granted on December 2, 2025. Notice was given to the Class Members as ordered. (See Declaration of Norma Ayala ("Ayala Decl."))

Now before the
Court is the motion for final approval of the settlement agreement.

CLASS
DEFINITION AND ESSENTIAL TERMS OF SETTLEMENT AGREEMENT

The
essential terms are as follows:

· “Class”
means all current and former non-exempt employees who worked for Defendants
World Courier Inc. and World Customs Brokerage, Inc. in California at any time
between March 8, 2020, through February 1, 2025 (the “Class Period”).
(Settlement, ¶1.5.)

o
“Class Period” means the period from
March 8, 2020, through February 1, 2025. (¶1.12)

o
The Class Data consisted of a total of
183 individuals. (Ayala Decl., ¶5.)

· “Aggrieved
Employee” means all current and former non-exempt employees who worked for
Defendants World Courier Inc. and World Customs Brokerage, Inc. in California
at any time between November 1, 2022, through February 1, 2025 (the “PAGA
Period”). (¶1.4)

o
“PAGA Period” means the period from
November 1, 2022, through February 1, 2025. (¶1.32)

o
There are 129 Aggrieved Employees who
worked a total of 5,459 PAGA Pay Periods during the PAGA Period. (Ayala Decl.,
¶17.)

· The settlement is based on the following estimates at the time of

mediation: (1) approximately 182 class members who worked approximately 20,000 workweeks; and (2) approximately 129 Aggrieved Employees who worked approximately 4,491 pay periods. If the workweek count increases by more than 10%, then Defendants will supplement the Gross Settlement Amount as follows: in the event that the total number of workweeks of Class Members exceeds 22,000 (i.e., a 10% increase of the 20,000 workweeks), then Defendants agree to increase the Gross Settlement Amount on a pro rata basis equal to a percentage in the number of workweeks worked in excess of 22,000. For illustrative purposes only, if the number of workweeks increases by 11% to 22,200 workweeks, the Gross Settlement Amount will increase by one percent (1%). In the event that this escalator clause is triggered, Defendants will have the option to either (1) cut off the Class Period and PAGA Period as of the date the total number of workweeks reaches 22,000 workweeks; or (2) pay the increase. Ten (10) days prior to the Hearing on Plaintiff's Motion for Preliminary Approval of the Settlement, Defendant shall notify Class Counsel of the number of Workweeks during the Class Period, so that the Parties may notify the Court as to whether the escalator provision has triggered and the appropriate Class Period. (¶8)

o

The total number of Workweeks worked by Participating Class Members during the Class Period is 21,254. (Ayala Decl., ¶15.)

· The Gross Settlement Amount ("GSA") is \$950,000, non-reversionary. (¶13.1)

· The Net Settlement Amount ("NSA") of \$553,783.33 is the GSA minus:

o

Up to \$316,666.67 (33.3%) for attorneys' fees (¶13.2.2);

§ Fee Split: 50% to JCL Law Firm, APC, and 50% to Zakay Law Group, APLC. (Lapuyade Decl. ISO Preliminary Approval, ¶45.)

o

Up to \$30,000 for attorneys' costs (¶13.2.2);

o

Up to \$10,000 for an Enhancement Payment to the class representative

(¶3.2.1);

o

Up to \$7,050 for costs of settlement administration (¶3.2.3); and

o

Payment of \$32,500 (65% of \$50,000 PAGA penalty)
to the LWDA (¶3.2.5).

· Defendant will separately pay for employer payroll taxes, which is
not included in the Gross Settlement Amount. (¶3.1)

· Funding of the Settlement: Defendants
shall fully fund the Gross Settlement Amount and also fund the amounts
necessary to fully pay Defendants' share of payroll taxes by transmitting the
funds to the Administrator no later than sixty (60) calendar days after the
Effective Date. (¶4.3)

· Uncashed Checks: The Administrator will cancel all checks not
cashied by the void date (not less than 180 days after the date of mailing).
(¶4.4.1) For any Class Member whose Individual Class
Payment check or Individual PAGA Payment check is uncashed and cancelled after
the void date, the Administrator shall transmit the funds represented by such
checks to the California Controller's Unclaimed Property Fund in the name of
the Class Member thereby leaving no "unpaid residue" subject to the
requirements of California Code of Civil Procedure Section 384, subd. (b). (¶4.4.3)

· The proposed Settlement Agreement was submitted to the LWDA on
March 28, 2025. (Lapuyade Decl. ISO Preliminary Approval, Exh. 3.)

ANALYSIS

OF SETTLEMENT AGREEMENT

A.

Does

a presumption of fairness exist?

The Court preliminarily found in
its Orders on December 2, 2025, that the presumption of fairness should be
applied. No facts have come to the

Court's attention that would alter that preliminary conclusion. Accordingly, the settlement is entitled to a presumption of fairness as set forth in the preliminary approval order.

B. Is the settlement
fair, adequate, and reasonable?

The settlement was preliminarily found to be
fair, adequate and reasonable. Notice
has now been given to the Class and the LWDA.

Reaction of the class
members to the proposed settlement.

Number of class
members: 183 (Ayala Decl., ¶5.)

Number of notice
packets mailed: 183 (Id. at ¶7.)

Number of
undeliverable notices: 7 (Id. at ¶10.)

Number of
opt-outs: 0 (Id. at ¶11.)

Number of
objections: 0 (Id. at ¶12.)

Number of
participating class members: 183 (Id. at
¶14.)

Average
individual payment: \$2,930.51 (Id. at
¶16.)

Highest
estimated payment: \$6,459.42 (Ibid.)

Lowest

estimated payment: \$25.23 (Ibid.)

Number of

Aggrieved Employees: 129 (Id. at ¶17.)

Average PAGA

payment: \$135.66 (Id. at ¶18.)

Highest

estimated PAGA payment: \$195.55 (Ibid.)

Lowest

estimated PAGA payment: \$3.21 (Ibid.)

The Court finds that the notice was

given as directed and conforms to due process requirements. Given the reactions of the Class Members and the LWDA to the proposed settlement and for the reasons set for in the Preliminary Approval order, the settlement is found to be fair, adequate, and reasonable.

C.

Attorney

Fees and Costs

Class Counsel request \$316,666.67 in fees and litigation costs and expenses in the amount of \$23,275.94. (Motion ISO Fees, 15:4-8; 13:12-15.)

The Settlement provides for attorney's

fees up to \$316,666.67 and costs of \$30,000 (Settlement Agreement, ¶3.2.2); the class was provided notice of the requested awards and none objected. (Ayala Decl., ¶12 and Exhibit A thereto.)

The

following fee split has been agreed to herein: 50% to JCL Law Firm, APC, and 50% to Zakay Law Group, APLC. (Lapuyade Decl. ISO Preliminary Approval, ¶45.)

"Courts recognize two methods for

calculating attorney fees in civil class actions: the lodestar/multiplier method and the percentage of recovery method."

(Wershba at 254.)

Here, class counsel requests attorney fees using the percentage method as cross-checked by lodestar. (Motion ISO Fees, pgs. 2-13.)

The fee request represents 33% of the gross settlement amount which is the average generally awarded in class actions. See *In re Consumer Privacy Cases* (2009) 175 Cal.App.4th 545, 558, fn. 13 (“Empirical studies show that, regardless of whether the percentage method or the lodestar method is used, fee awards in class actions average around one-third of the recovery.”).

Counsel has provided the following lodestar information:

Biller

Rate

Hours

Lodestar

JCL Law Firm, APC

\$250- \$850

65.2

\$47,920.00

Zakay Law Group, APLC

\$350 - \$650

196.4

\$124,705.00

Total

261.60

\$172,625.00

(Lapuyade

Decl. ISO Fees, ¶5 and Exhibit 2 thereto; Zakay Decl. ISO Fees, ¶9 and Exhibit 3 thereto.)

Counsel has spent over 261.60 hours

in connection with this litigation, resulting in a lodestar of \$172,625.00, which would require a multiplier of 1.8 to yield the requested fee amount.

(Motion ISO Fees, 5:6-8Lapuyade Decl. ISO Fees, ¶5 and Exhibit 2 thereto; Zakay Decl. ISO Fees, ¶9 and Exhibit 3 thereto.)

As

for costs, class counsel has incurred costs of \$23,275.94 (\$10,135.78 by JCL Law Firm, APC, \$13,140.16 by Zakay Law Group, APLC.) (; Zakay Decl. ISO Fees, ¶13 and Exhibit 2 thereto; Lapuyade Decl. ISO Fees, ¶11 and Exhibit 1 thereto.)

Class

Counsel is requesting \$23,275.94 in

costs which is less than the settlement cap of \$30,000. (Ibid.) The

costs in this case include, but are not limited to, filing fees (\$1,497.05), case anywhere costs, mediation (\$10,990), and expert fees

(Berger Consulting Group) (\$9,135). (Ibid.)

The costs seem reasonable and necessary to litigation.

Based on the above, the recommendation

is to award \$316,666.67 for fees and

\$23,275.94 for litigation costs.

D.

Incentive

Award to Class Representative

The Settlement Agreement provides for

up to \$10,000 for an incentive award

to the class representative. (Settlement Agreement, ¶3.2.1)

Plaintiff Liebrecht's contributions to

this litigation include, and are not limited to, spending 35 to 70 hours on the following: obtaining counsel, gathering

documents, having numerous conversations with counsel, remaining telephonically available for mediation, and reviewing the settlement. (Liebregt' Decl., ¶¶5, 11-12.)

The court notes that the above actions are commendable, yet not exceptional. Based on the above, the recommendation is to award an enhancement award in the amount of \$7,500.

E.

Claims

Administration Costs

The claims administrator requests \$7,050 for the costs of administering the settlement. (Ayala Decl., ¶19.)

The \$7,050 request is equal to the \$7,050 maximum amount estimated at preliminary approval and disclosed in the notice to class members, to which there were no objections. (Id. at ¶12 and Exhibit A thereto.)

Based on all the work performed by the Claims Administrator, the recommendation is to award costs in the requested amount of \$7,050.